

25NNCV03511 25NNCV03511

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Case Number: 25NNCV03511 Hearing Date: July 17, 2026 Dept: A

JULY 17, 2026

DEMURRER

Los

Angeles Superior Court Case # 25NNCV03511

MP: Defendants Tesla Insurance Services and State National Insurance Company, Inc.

RP: Plaintiffs Akob Tadevosian and Tamara Tadevosian

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Akob

Tadevosian and Tamara Tadevosian ("Plaintiffs") allege that on June 2, 2024, Tesla Insurance Services and State National Insurance Company, Inc. ("Defendants") issued Plaintiffs automobile insurance for three vehicles, which included uninsured motorist bodily injury coverage of \$100,000 per person and \$300,000 per accident. (SAC, ¶¶9-10.) On June 19, 2024, Mr. Tadevosian was operating a 2022 BMW 330i and his wife, Mrs. Tadevosian, was the passenger. (Id., ¶15.) Plaintiffs allege that their vehicle was stopped when it was struck by an uninsured vehicle. (Id., ¶¶16-17.) At the time of the collision, the vehicle was registered to Mr. Tadevosian's cousin, although he made the lease payments on, insured, and drove the vehicle. (Id., ¶20.) Plaintiffs allege that on October 29, 2024, they sent a letter to Defendants regarding the claim and on October 31, 2024, Defendants denied their claim on the basis that Plaintiffs (named insureds) were not the vehicle's owners. (Id., ¶¶23-24.)

The Second Amended Complaint ("SAC"), filed March 16, 2026, alleges: (1) Breach of the Implied Covenant of Good Faith and Fair Dealing against SNIC; (2) Breach of Contract against SNIC; (3) Promissory Estoppel against all Defendants; (4) Negligence against Tesla; and (5) Unfair Business Practices in Violation of Business & Professions Code, §17200 against all Defendants.

MOTION

ON CALENDAR:

On April 17, 2026, Defendants filed a Demurrer to the SAC. On July 6, 2026, Plaintiffs filed an opposition. On July 10, 2026, Defendants filed a reply.

LEGAL STANDARD:

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P.

§ 430.30(a); Blank v. Kirwan

(1985) 39 Cal.3d311, 318.) A demurrer

for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th

740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Id.)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank, supra, 39 Cal.3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal.3d at 318.)

Pursuant to C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1082.)

MEET AND CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Shilling Decl., ¶¶2-6.)

ANALYSIS:

Defendants demur to the Third, Fourth, and Fifth Causes of Action in the SAC on the ground that they fail to allege sufficient facts.

A. Third Cause of Action for Promissory Estoppel – Sustained with Leave to Amend

“The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.” (Aceves v. U.S. Bank, N.A. (2011) 192 Cal.App.4th 218, 225 [internal quotation marks omitted].) The promise need only be definite enough for the court to determine the scope of the duty and limits of performance to provide a rational basis for the assessment of damages. (Id. at 226.) “Promissory estoppel applies whenever a promise which the promisor should reasonably expect to induce action or forbearance on the part of the promisee or a third person and which does induce such action or forbearance would result in an ‘injustice’ if the promise were not enforced....” (Id. at 227 [internal quotations omitted].)

In the Third Cause of Action, Plaintiffs allege they obtained the Policy from SNIC naming Mr. Tadevosian as a named insured, he was involved in the automobile collision, and he made every monthly insurance payment on the vehicle. (Id., ¶¶60-61.) They contend that Mr. Tadevosian’s status as the vehicle’s payor/operator independently constitutes an insurable interest. (Id., ¶62.) Plaintiffs are informed and believe that Defendants’ inclusion of Mr. Tadevosian as a named insured is affirmation that he had an insurable interest in the vehicle. (Id., ¶63.) Tesla, on Defendants’ behalf, promised Plaintiffs to provide automobile insurance for three vehicles, including the subject vehicle, with knowledge that Mr. Tadevosian was not the vehicle’s registered owner. (Id., ¶64.) By issuing the Policy, accepting premiums, and providing an insurance card, SNIC allegedly ratified Tesla’s promise and separately made a clear and unambiguous promise to provide insurance coverage, with full knowledge that Mr. Tadevosian was not the vehicle’s registered owner. (Id., ¶65.) Plaintiffs allege the promise was clear and ambiguous; Defendants knew at the time of policy issuance that Mr. Tadevosian was not the registered owner, accepted premiums anyways, and never notified him of any coverage defect; and there was no express exclusion from uninsured motorist coverage based on the named insured’s status as a non-owner of the insured vehicle. (Id., ¶67.) Plaintiffs allege they relied on Defendants’

promises that they would be provided insurance coverage; they reasonably and detrimentally relied as they were named insured and Mr. Tadevosian made timely premium payments; and they suffered in the amount of premium payments made towards the Policy and denied benefits owed under the Policy. (Id., ¶¶68-70.) Plaintiffs seek the benefits under the Policy or, alternatively, if the Policy is void due to lack of insurable interest, restitution of all premiums paid. (Id., ¶71.)

Defendants argue that Plaintiffs cannot base a promissory estoppel claim on preexisting obligations where the parties exchanged consideration. (Youngman v. Nevada Irr. Dist. (1969) 70 Cal.2d 240, 250 [“[W]here the promisee’s reliance was bargained for, the law of consideration applies; and it is only where the reliance was unbargained for that there is room for application of the doctrine of promissory estoppel.”].) “The purpose of this doctrine is to make a promise binding, under certain circumstances, without consideration in the usual sense of something bargained for and given in exchange. If the promisee’s performance was requested at the time the promisor made his promise and that performance was bargained for, the doctrine is inapplicable.” (Id. at 249.) Defendants argue the parties bargained for and agreed upon the Policy in exchange for premium payments. They argue that the fact that the law voids the Policy with respect to the subject vehicle because Plaintiffs lack an insurable interest does not void the fact that the promise Plaintiffs seek to enforce was a bargained for promise. (Dem. at p.4; Ins. Code, § 280 [“If the insured has no insurable interest, the contract is void.”].)

In opposition, Plaintiffs argue that if Youngman applies, then they are still entitled to allege an alternative claim that provides them with relief for justifiable and detrimental reliance based on Defendants’ promise to insure the vehicle in the alternative.

Here, the parties bargained for the Policy and Plaintiffs made insurance premium payments, which was the performance requested at the time Defendants made their promise and that performance (of premium payments) was bargained for. While Plaintiffs may be entitled to some sort of claim entitling them to restitution, the promissory estoppel doctrine is not applicable in the context of this case.

Next, Defendants argue that it is

the “general and quite well settled rule of law that the principles of estoppel and implied waiver do not operate to extend the coverage of an insurance policy after the liability has been incurred or the loss sustained.” (Aetna Casualty & Surety Co. v. Richmond (1977) 76 Cal.App.3d 645, 652–653 [explaining the rationale as follows: “The rule is well established that the doctrines of implied waiver and of estoppel, based upon the conduct or action of the insurer, are not available to bring within the coverage of a policy risks not covered by its terms, or risks expressly excluded therefrom, and the application of the doctrines in this respect is therefore to be distinguished from the waiver of, or estoppel to assert, grounds of forfeiture.”]; Dem. at p.5.)

Plaintiffs rely

on Dones v.

Life Ins. Co. of North America (2020) 55 Cal.App.5th 665.

In Dones, the beneficiary of a deceased county employee sued the county and life insurance company after a denial of supplemental life insurance coverage based on a provision that insurance would not become effective if the employee was not in “active service” on the effective date. The insured had taken medical leave and died six months later without having returned to work. The Dones Court found that allegations of a life insurance enrollee who received confirmation of her enrollment, had premium payments deducted from her paycheck, and was never informed that there were issues with her enrollment, despite employer County and the insurer’s knowledge of her medical leave, alleged sufficient facts supporting waiver and estoppel to withstand a demurrer. (Dones, supra, 55 Cal.App.5th at 686-687.)

In making its ruling, the Court of

Appeal distinguished Dones from Aetna and various cases cited by

the insurer. The Dones Court

stated: “The cases LINA [insurer] relies upon involve plaintiffs’ attempts to obtain coverage under existing insurance policies for claims not covered by the terms of their policies. ... Unlike the cases LINA relies upon, the present case does not involve the scope of coverage under an existing insurance policy but rather the question whether the policy ever went into effect. None of LINA’s cases involve waiver or estoppel in the context of a condition precedent to operative policy coverage.” (Id. at 678, 680.) The Court stated, “Waiver and estoppel are normally questions of fact, and LINA’s cases do not support a conclusion that these doctrines are inapplicable in the present case. We decline to hold that principles of waiver and estoppel cannot establish the existence of an effective contract of insurance as a matter of law.” (Id.

at 683.)

Plaintiffs

argue that Dones is similar because Defendants issued the Policy, it was in effect at the time of the underlying claim, Defendants accepted premium payments, and Defendants did not inform Plaintiffs that the vehicle listed as insured was not in fact insured despite knowing Mr. Tadevosian was not the registered owner of the vehicle. However, Dones did not include a promissory estoppel claim but, rather, asserted a claim for breach of contract on the ground that both waived or were estopped from asserting the active service precondition to coverage. (Dones, supra, 55 Cal.App.5th at 671.)

At this point, the Court cannot ascertain whether Aetna applies to the facts of this case. A copy of the Policy is not attached to the FAC, such that the Court cannot ascertain whether Plaintiffs are attempting to bring within the policy's coverage risks that are not covered by its terms or risks expressly excluded therefrom. However, as alleged by Plaintiffs, "the Policy does not contain any express exclusion from uninsured motorist coverage based solely on the named insured's status as a non-owner of the insured vehicle, and Defendants' denial was not based on any such written exclusion." (SAC, ¶67.) Taking the allegations as true at the pleading stage, the Court finds that Plaintiffs potentially has a claim that can be alleged in the alternative to a breach of contract claim, but, as discussed above, this claim cannot amount to a promissory estoppel claim.

Finally, to the extent that Defendants argue that they had no way of knowing the identity of the subject vehicle's registered owner outside of Plaintiffs telling Defendants, such arguments are outside the scope of the pleading. However, this argument and potentially arguments under Aetna may potentially apply beyond the pleading stage after this cause of action is reframed and at a stage where extrinsic facts and evidence may be considered.

Accordingly, the demurrer to the Third Cause of Action for Promissory Estoppel is sustained with leave to amend so that Plaintiffs may recharacterize this cause of action.

B. Fourth Cause of Action for Negligence – Overruled

In the Fourth Cause of Action, Plaintiffs allege that Tesla owed Plaintiffs a duty to procure an automobile insurance policy that would actually provide insurance for three vehicles. (SAC, ¶73.) Plaintiffs allege Tesla breached this duty since, according to SNIC, the Policy did not cover Mr. Tadevosian on the basis that he lacked an insurable interest in the Policy. (Id., ¶74.) Plaintiffs allege that due to Tesla's breach, they were deprived of the Policy's benefits and suffered damages. (Id., ¶75.)

Defendants argue that Plaintiffs have not alleged a valid basis for any duty Tesla owed to Plaintiffs. They argue that based on the SAC's allegations, Tesla was SNIC's agent such that Tesla owed its principal SNIC certain duties, but did not owe duties to Plaintiffs. Defendants contend, under *Brown v. Guarantee Ins. Co.* (1957) 155 Cal.App.2d 679, 688–689, that “only bad faith should be the basis of the insured's cause of action. Bad faith may involve negligence, or negligence may be indicative of bad faith, but negligence alone is insufficient to render the insurer liable.” (See also *Sanchez v. Lindsey Morden Claims Services, Inc.* (1999) 72 Cal.App.4th 249, 254 “Indeed, negligence is not among the theories of recovery generally available against insurers (See *Croskey et al.*, Cal. Practice Guide: Insurance Litigation 2 (The Rutter Group 1998) ¶¶ 12:818, 11:205, pp. 12C-6, 11-48 to 11-49, rev. #1, 1996)”].)

However, the Court does not read Plaintiffs' Negligence Cause of Action as narrowly as Defendants. This claim is not premised upon bad faith or Tesla's failure to properly investigate claims, unreasonable denial of a claim, failure to pay insurance policy benefits, etc., which would be more akin to a bad faith claim. Rather, the claim is premised upon Tesla's obligation to procure valid insurance benefits on Plaintiffs' behalf and Tesla's failure to do so.

“California recognizes the general rule that an agent or broker who intentionally or negligently fails to procure insurance as requested by a client--either an insured or an applicant for insurance--will be liable to the client in tort for the resulting damages.” (*AMCO Ins. Co. v. All Solutions Ins. Agency, LLC* (2016) 244 Cal.App.4th 883, 890.) “A broker's failure to obtain the type of insurance requested by an insured may constitute actionable negligence and the proximate cause of injury.” (*Desai v. Farmers Ins. Exchange* (1996) 47 Cal.App.4th 1110, 1120.) “Absent some notice or warning, an insured should be able to rely on an agent's representations of coverage without independently verifying the accuracy of those representations by examining the

relevant policy provisions.” (Clement v. Smith (1993) 16 Cal.App.4th 39, 45.)

Plaintiff bring this cause of action against Tesla for its breach of duty to procure automobile insurance for the vehicle Mr. Tadevosian drove at the time of the subject collision. In this context, a negligence claim would not justify the sustaining of the demurrer.

Finally, Defendants contend the economic loss rule bars the Negligence claim where Plaintiffs seek to enforce contractual obligations. However, this argument is premised upon a misunderstanding of the Fourth Cause of Action. As argued by Plaintiffs: “Defendants are claiming there never was a policy in effect, thus Plaintiffs are alleging a cause of action for negligent failure to obtain insurance coverage because Tesla had a duty to obtain automobile insurance.” (Opp. at p.8.) Thus, this cause of action is not based on contractual duties to investigate claims, pay insurance benefits, etc., but is based on the procurement (or failure thereof) of insurance benefits in the first place. At the pleading stage, Plaintiff may plead alternate causes of action on different theories regarding whether a contract/policy existed.

Thus, the demurrer to the Fourth Cause of Action is overruled.

C. Fifth Cause of Action for Unfair Business Practices in Violation of Business & Professions Code, § 17200 – Sustained with Leave to Amend

The purpose of the Unfair Competition Law (“UCL”) is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services. (Buller v. Sutter Health (2008) 160 Cal.App.4th 981, 986.) Section 17200 defines unfair competition to mean and include “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by [the false advertising law (§ 17500 et seq.)].” (Id.) Since section 17200 is written in the disjunctive, a business act or practice need only meet one of the three criteria, i.e., unlawful, unfair, or fraudulent, to be considered unfair competition under the UCL. (Id.)

In order to

plead a claim under Business and Professions Code § 17200, there must be allegations demonstrating that the Defendants engaged in an unlawful, unfair, or fraudulent business act or practice.

(Paulus v. Bob Lynch Ford, Inc.

(2006) 139 Cal.App.4th 659, 676-77.)

Further, to plead this statutory claim, the pleadings must state with reasonable particularity the facts supporting the statutory elements of the violation. (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.)

In the Fifth

Cause of Action, Plaintiffs allege that SNIC has a custom and practice of placing its own financial interest above the interests of its insureds and investigating claims with the intent to deny coverage. (SAC, ¶78.)

Plaintiffs contend Defendants' practices violate Insurance Code, §§ 790.03 and 790.04 and.

(Id., ¶79.)

Plaintiffs claim Defendants' unfair and unlawful practices include: (a) procuring policies Defendants know will not cover the named insured and failing to disclose at point of sale that non-owner status would result in coverage denial; (b) unreasonably interpreting policies to disclaim coverage simply because named insureds are not the registered owner of a vehicle, even though SNIC accepts, and fails to return, insurance premium payments; (c) acting or failing to act in a manner that deprives named insureds of the policy benefits; (d) engaging in a pattern and practice of acting or failing to act in a manner that deprives its insureds of policy benefits; (e) failing to make a prompt, fair and equitable settlement of insurance claims; (f) engaging in a pattern and practice of failing to conduct a prompt, fair, balanced and thorough investigation of claims made under its policies; (g) engaging in a pattern and practice of failing to diligently search for and consider evidence that supports coverage of claims; (h) engaging in a pattern and practice of failing to give at least as much consideration to the interests of its insureds as it gives to its own interests; (i) engaging in a pattern and practice of placing its own financial interests above the interests of its insureds; (j) investigating claims with the intent of finding a reason to deny coverage; (k) engaging in a pattern and practice of investigating claims with the intent of finding a reason to deny coverage; (l) failing to inform Plaintiffs that Mr. Tadevosian would not be insured since he was not the registered owner; (m) including Mr. Tadevosian as a named insured when

Defendants internally purportedly believed he did not have an “insurable interest” in the vehicle; (n) accepting premium payments despite their purported internal belief that he would not be entitled to Policy benefits; and (o) convincing the public that named insureds would be entitled to insurance benefits despite not being the registered owner. (Id., ¶79.)

Plaintiffs contend that Defendants’ practice of accepting premiums from named insureds while internally treating them as uninsured offends the public policy expressed in Insurance Code § 790.03; is likely to deceive reasonable consumers; and constitutes an unfair business practice as immoral, unscrupulous, and substantially injurious to consumers who reasonably believe named-insured status confers coverage. (Id., ¶¶80-81.) Plaintiffs allege, upon information and belief, that Defendants have a custom and practice of placing their own financial interests above their clients, including those for whom it purports to procure insurance coverage, and that this custom and practice entails purposefully procuring automobile insurance policies that do not provide coverage to named insureds who are not owners of an insured vehicle, despite Defendants’ knowledge that (1) the named insured will operate the insured vehicle; (2) the named insured expects and believes they will be covered under the policy obtained by Defendants; and (3) the registered owner is not an insured under the policy. (Id., ¶82.) Plaintiffs allege Defendants engaged in unlawful, unfair, fraudulent, and discriminatory conduct, such that they suffered loss of money and property. (Id., ¶¶83-84.)

First, a violation of the unfair prong of section 17200 involves an examination of the impact of the business practice on its alleged victim balanced against the reasons, justifications and motives of the alleged wrongdoer. (Searle v. Wyndham Int’l (2002) 102 Cal.App.4th 1327, 1334.) An unfair business practice occurs when it offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers. (Id.) In general, the unfairness prong has been used to enjoin deceptive or sharp practices. (Id.)

Defendants argue that Plaintiffs have not pleaded specific facts that Defendants knew Mr. Tadevosian was not the registered owner prior to Plaintiffs’ claim. While the SAC alleges in a conclusory fashion that Defendants knew Mr. Tadevosian did not own the vehicle at the time they issued the Policy, there are no facts supporting this assertion. (See SAC, ¶22.) Plaintiffs allege that Defendants engaged in

unfair practices by “Unreasonably including Akob as a named insured under the Policy when Defendants internally purportedly believed that Akob did not have an ‘insurable interest’ in the Vehicle.”

(Id., ¶79(m).) However,

there are no facts detailing Defendants’ internal and purported belief that Mr. Tadevosian did not have an insurable interest.

Thus, as currently worded, the Court does not find that Plaintiffs have alleged specific facts showing that Defendants engaged in a business practice that intended to find reasons to deny coverage or included named insureds when they knew the individuals did not have insurable interests.

The SAC fails

to identify a particular business practice that offends established public policy or that is immoral, unethical, oppressive, unscrupulous, or substantially injurious to consumers. Second,

a violation of the unlawful prong includes anything that can properly be called a business practice and that at the same time is forbidden by law. (Paulus v. Bob Lynch Ford, Inc. (2006) 139 Cal. App. 4th 659, 676-677.)

With respect

to Plaintiffs’ citation to Insurance Code, §§ 790.03 and 790.04, these sections cannot constitute a basis for a UCL claim.

As stated in Zhang v. Superior Court (2013) 57 Cal.4th 364, 384:

“When the Legislature enacted the [Unfair Insurance Practices Act], it contemplated only administrative enforcement by the Insurance Commissioner. [Citation.] Private UIPA actions are absolutely barred; a litigant may not rely on the proscriptions of section 790.03 as the basis for a UCL claim. [Citations.] However, when insurers engage in conduct that violates both the UIPA and obligations imposed by other statutes or the common law, a UCL action may lie. The Legislature did not intend the UIPA to operate as a shield against any civil liability. [Citation.]”

Next,

Plaintiffs cite to California’s Fair Claims Settlement Practices Regulations (10 C.C.R. § 2695.1 et seq.). However, it is unclear what section of the

Fair Claims Settlement Practices Regulation Plaintiffs intend to rely upon. Section 2695.1 starts with the

“Preamble.” However, Plaintiffs

have not cited to a specific portion of the California’s Fair Claims Settlement

Practices Regulations or what portion of the regulations was violated. As such, a review of the pleadings reveals no

allegations that identify a law, regulation, or statute and the particular business practices directed at Plaintiffs that violated the identified law, regulation, or statute.

Third, a

violation of the fraudulent prong of section 17200 can be shown with

allegations that the fraudulent practice was likely to deceive members of the

public. (Schnall v. Hertz Corp. (2000) 78 Cal.App.4th 1144, 1167.) The "fraud" prong "is unlike common law fraud or deception. A

violation can be shown even if no one was actually deceived, relied upon the

fraudulent practice, or sustained any damage. Instead, it is only necessary to

show that members of the public are likely to be deceived." (Buller v. Sutter Health (2008)

160 Cal.App.4th 981, 986.) A review of

the pleading reveals no allegations that identify a particular business

practice that was a fraudulent practice likely to deceive the public. It does not appear that Plaintiffs seek to

pursue a UCL claim based on the fraud prong.

Thus, the

demurrer to the Fifth Cause of Action is sustained with leave to amend.

RULING:

In the

event the parties submit on this tentative ruling, or a party requests a signed

order or the court in its discretion elects to sign a formal order, the

following form will be either electronically signed or signed in hard copy and

entered into the court's records.

ORDER

Defendants

Tesla Insurance Services and State National Insurance Company, Inc.'s Demurrer came

on regularly for hearing on July 17, 2026, with appearances/submissions as

noted in the minute order for said hearing, and the court, being fully advised

in the premises, did then and there rule as follows:

THE DEMURRER TO THE SECOND AMENDED COMPLAINT

IS SUSTAINED WITH 30 DAYS' LEAVE TO AMEND AS TO THE THIRD AND FIFTH CAUSES OF

ACTION. THE DEMURRER IS OVERRULED AS TO THE FOURTH
CAUSE OF ACTION.

THE CASE MANAGEMENT CONFERENCE SET FOR AUGUST
11, 2026 IS ADVANCED AND CONTINUED TO SEPTEMBER 28, 2026 AT 9:00 AM.

DEFENDANTS TO PROVIDE NOTICE.

IT IS SO ORDERED.